

25STCV35945 25STCV35945

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Case Number: 25STCV35945 Hearing Date: September 17, 2026 Dept: 517

The Court is denying the ex parte application of Defendant Zeus Realty Group LLC ("Zeus") to continue the hearing on its motion under Code of Civil Procedure section 1008, subdivision (a) for reconsideration, clarification, and/or modification of the Court's June 16, 2026 order granting Plaintiff 1032 N. Sycamore Owner (LA), LLC's ("1032 N. Sycamore") application to serve the summons and complaint in this unlawful detainer action by posting and then mailing.

The Court discerns

no good reason to continue the hearing on the reconsideration motion. Zeus invoked 1032 N. Sycamore's unauthorized supplemental brief in opposition to Zeus's reconsideration motion as the basis to continue the hearing. The Court did not, however, consider that supplemental brief in its disposition of the reconsideration motion.

The Court is denying the reconsideration motion.

The

impetus for the filing of the reconsideration motion was Zeus's concern about adverse comments on Zeus's credibility with respect to the history of 1032 N. Sycamore's efforts to serve Zeus that the Court expressed in its June 16, 2026 order granting 1032 N. Sycamore's application to serve Zeus by posting and mailing. According to Zeus, the Court's comments should be reconsidered, clarified, or modified in light of what Zeus says is a now more complete record about that history that was unavailable to the Court when the comments were made. Zeus asserts that absent that relief, 1032 N. Sycamore may "convert" the Court's comments on Zeus' credibility "into a contempt weapon" against Zeus. 1032 N. Sycamore has asked the Court to initiate

contempt proceedings against Zeus based on assertions that Zeus fabricated documents in support of its motions to quash service of the summons and complaint before the Court granted the application to serve Zeus by posting and mailing.

Zeus has not shown that reconsideration, clarification, or modification of the comments on Zeus's credibility in the June 16, 2026 order is warranted under section 1008, subdivision (a). Its motion is thus denied.

Section 1008, subdivision (a) provides as follows:

When an application for an order has been made to a judge, or to a court, and refused in whole or in part, or granted, or granted conditionally, or on terms, any party affected by the order may, within 10 days after service upon the party of written notice of entry of the order and based upon new or different facts, circumstances, or law, make application to the same judge or court that made the order, to reconsider the matter and modify, amend, or revoke the prior order. The party making the application shall state by affidavit what application was made before, when and to what judge, what order or decisions were made, and what new or different facts, circumstances, or law are claimed to be shown.

(Code Civ. Pro. § 1008, subd.(a).)

Long-standing precedent holds that “[f]acts of which a party seeking reconsideration was aware at the time of the original ruling are not ‘new or different facts’” for purposes of section 1008, subdivision (a). (People v. Safety National Casualty Corp. (2010) 186 Cal.App.4th 959, 974.) The party must demonstrate that it could not, through the exercise of reasonable diligence, have presented the purported new facts at the time of the hearing on the ruling on which reconsideration is sought. (Ibid.; see also Hennigan v. White (2011) 199 Cal.App.4th 395, 406; McPherson v. City of Manhattan Beach (2000) 78 Cal.App.4th 1252, 1265.)

In the Court's view, Zeus has failed to demonstrate that it could not have presented to the Court the purported “new” information in its reconsideration motion through the exercise of reasonable diligence prior to the hearing on 1032 N. Sycamore's application to serve Zeus by posting and mailing. The information was available to

Zeus at that time.

Zeus's concerns about the Court's comments on Zeus's credibility are overblown. To be sure, the Court's comments formed part of the reason for the decision to grant 1032 N. Sycamore's application to serve Zeus by posting and mailing. Zeus is not asking the Court to reconsider that decision itself, however. In commenting on Zeus's credibility, the Court took no position on whether Zeus's conduct showed that Zeus should be held in contempt or that contempt proceedings should even be initiated. Nothing in the June 16, 2026 order prevents Zeus from presenting to the Court, as part of arguments to prevent the initiation of contempt proceedings or as a defense in any such proceedings the asserted, complete, updated record of its conduct with respect to 1032 N. Sycamore's efforts to serve Zeus.